

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                                        |                           |                                                       |                                               |                                 |
|--------------------------------------------------|--------------------------------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Enoch Sowah                     | Team:<br>Squad #04                                                                                     | CCRB Case #:<br>201704208 | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                                                        |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 05/21/2017 8:00 PM   | Location of Incident:<br>Front of § 87(2)(b), en route to and inside of the 63rd Precinct stationhouse |                           | 18 Mo. SOL<br>11/21/2018                              | Precinct:<br>63                               |                                 |
| Date/Time CV Reported<br>Mon, 05/22/2017 1:35 PM | CV Reported At:<br>IAB                                                                                 | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 05/26/2017 4:01 PM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Jonathan Bourne | 18854  | 958321 | 063 PCT |
| 2. POM Kristo Cevi     | 16538  | 952569 | 063 PCT |
| 3. SGT George Taylor   | 2396   | 946312 | 063 PCT |

| Officer(s)              | Allegation                                                                                                                                        | Investigator Recommendation |
|-------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . SGT George Taylor   | Abuse: In front of § 87(2)(b) in Brooklyn, Sergeant George Taylor stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.          | A . Exonerated              |
| B . SGT George Taylor   | Abuse: In front of § 87(2)(b) in Brooklyn, Sergeant George Taylor searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.         | B . Unsubstantiated         |
| C . POM Jonathan Bourne | Abuse: In front of § 87(2)(b) in Brooklyn, Police Officer Jonathan Bourne searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. | C . Unsubstantiated         |
| D . POM Kristo Cevi     | Discourtesy: In front of § 87(2)(b) in Brooklyn, Police Officer Kristo Cevi spoke discourteously to § 87(2)(b)                                    | D . Substantiated           |
| E . POM Kristo Cevi     | Abuse: In front of § 87(2)(b) in Brooklyn, Police Officer Kristo Cevi threatened to arrest § 87(2)(b)                                             | E . Unfounded               |
| F . POM Jonathan Bourne | Abuse: In front of § 87(2)(b) in Brooklyn, Police Officer Jonathan Bourne threatened to arrest § 87(2)(b)                                         | F . Exonerated              |
| G . SGT George Taylor   | Force: In front of § 87(2)(b) in Brooklyn, Sergeant George Taylor used physical force against § 87(2)(b)                                          | G . Unsubstantiated         |
| H . SGT George Taylor   | Discourtesy: In front of § 87(2)(b) in Brooklyn, Sergeant George Taylor spoke discourteously to § 87(2)(b)                                        | H . Unsubstantiated         |
| I . POM Kristo Cevi     | Abuse: In front of § 87(2)(b) in Brooklyn, Police Officer Kristo Cevi interfered with § 87(2)(b)'s use of a recording device.                     | I . Unsubstantiated         |

| Officer(s)              | Allegation                                                                                                                 | Investigator Recommendation |
|-------------------------|----------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| J . POM Kristo Cevi     | Discourtesy: In front of § 87(2)(b) in Brooklyn, Police Officer Kristo Cevi spoke discourteously to § 87(2)(b)             | J . Unsubstantiated         |
| K . SGT George Taylor   | Abuse: Sergeant George Taylor detained § 87(2)(b)                                                                          | K . Substantiated           |
| L . SGT George Taylor   | Discourtesy: En route to the 63rd Precinct Stationhouse, Sergeant George Taylor spoke discourteously to § 87(2)(b)         | L . Unsubstantiated         |
| M . POM Jonathan Bourne | Discourtesy: En route to the 63rd Precinct Stationhouse, Police Officer Jonathan Bourne spoke discourteously to § 87(2)(b) | M . Unsubstantiated         |
| N . POM Kristo Cevi     | Discourtesy: En route to the 63rd Precinct Stationhouse, Police Officer Kristo Cevi spoke discourteously to § 87(2)(b)     | N . Unsubstantiated         |
| O . POM Kristo Cevi     | Force: En route to the 63rd Precinct Stationhouse, Police Officer Kristo Cevi used physical force against § 87(2)(b)       | O . Unsubstantiated         |
| P . POM Jonathan Bourne | Force: At the 63rd Precinct Stationhouse, Police Officer Jonathan Bourne used physical force against § 87(2)(b)            | P . Unsubstantiated         |
| Q . POM Jonathan Bourne | Discourtesy: At the 63rd Precinct Stationhouse, Police Officer Jonathan Bourne spoke discourteously to § 87(2)(b)          | Q . Unsubstantiated         |
| R . POM Kristo Cevi     | Discourtesy: At the 63rd Precinct Stationhouse, Police Officer Kristo Cevi spoke discourteously to § 87(2)(b)              | R . Unsubstantiated         |
| S . POM Jonathan Bourne | Force: At the 63rd Precinct Stationhouse, Police Officer Jonathan Bourne tightly handcuffed § 87(2)(b)                     | S . Unsubstantiated         |
| T . SGT George Taylor   | Abuse: Sergeant George Taylor issued a summons to § 87(2)(b)                                                               | T . Substantiated           |

### Case Summary

On May 22, 2017, § 87(2)(b) filed this complaint with IAB by phone. On May 26, 2017, the case was received at the CCRB.

On May 21, 2017, at approximately 8 p.m., Sgt. George Taylor, PO Kristo Cevi and PO Jonathan Bourne of the 63<sup>rd</sup> Precinct approached a vehicle that was parked at a hydrant in front of § 87(2)(b) in Brooklyn for tinted windows (**Allegation A**). The officers requested that the driver of the vehicle, § 87(2)(b) lower his windows, but § 87(2)(b) ignored the officers for one to two minutes before he complied. § 87(2)(b) girlfriend, § 87(2)(b) was seated in the front passenger seat.

§ 87(2)(b) rolled his front windows down. PO Cevi requested § 87(2)(b) license and registration, but § 87(2)(b) refused and asked why he was stopped.

The three officers then opened both front doors and the rear passenger door on the front passenger side. While § 87(2)(b) and § 87(2)(b) were still seated in the vehicle, Sgt. Taylor and PO Bourne placed their heads into the vehicle and looked under the seats and interior consoles of the front and rear passenger doors (**Allegations B and C**).

§ 87(2)(b) became upset that the officers had opened his doors and loudly told them they had no right to do so. PO Cevi replied, “Shut the fuck up, you are parked illegally at a fire hydrant, we have the right to do what we want” (**Allegation D**).

PO Cevi again requested § 87(2)(b) license, which § 87(2)(b) provided. § 87(2)(b) then took his phone, which was in the center console, and attempted to record the interaction. PO Cevi asked § 87(2)(b) to step out of the vehicle. As § 87(2)(b) exited the vehicle, he dropped his cell phone on the driver’s seat. § 87(2)(b) picked up the cell phone and recorded the incident.

Once § 87(2)(b) was out of the vehicle, PO Cevi handcuffed him. § 87(2)(b) exited the vehicle and approached its trunk to record the incident. PO Cevi told her to return to the vehicle or she would be arrested (**Allegation E**). PO Bourne also told § 87(2)(b) “Get back in the car or we are going to arrest you” (**Allegation F**). § 87(2)(b) complied. Sgt. Taylor followed § 87(2)(b) back to the vehicle and closed the front passenger door behind her, causing it to strike § 87(2)(b)’s left foot and knee (**Allegation G**).

The officers then walked § 87(2)(b) to the police vehicle and placed him in the backseat. PO Cevi repeatedly told § 87(2)(b) to “keep quiet and shut the fuck up” (**Subsumed in Allegation D**). Sgt. Taylor then said to him, “Didn’t we tell you to shut the fuck up? We talk and you listen. You don’t fucking talk, so shut the fuck up” (**Allegation H**).

PO Cevi told § 87(2)(b) that because § 87(2)(b) was recording the incident, the officers were taking him to the 63<sup>rd</sup> Precinct stationhouse. § 87(2)(b) thus told § 87(2)(b) to stop recording and she complied (**Allegation I**).

PO Cevi then asked § 87(2)(b) to exit the vehicle. As § 87(2)(b) exited the vehicle, PO Cevi called her “retarded” because she still had the cell phone in her hands (**Allegation J**).

A few minutes later, § 87(2)(b)’s aunt, § 87(2)(b) arrived at the scene and also began to record the incident.

The officers transported § 87(2)(b) to the 63<sup>rd</sup> Precinct stationhouse (**Allegation K**).

En route to the stationhouse, each of the three officers repeatedly told § 87(2)(b) to “shut the fuck up” (**Allegations L, M, and N**). PO Cevi, who was seated in the backseat with § 87(2)(b) shoved § 87(2)(b) against the door as the vehicle made a sharp turn (**Allegation O**).

At the 63<sup>rd</sup> Precinct stationhouse, PO Bourne removed § 87(2)(b) from the police vehicle, shoved him against the vehicle’s trunk and told him to “shut the fuck up” (**Allegations P and Q**).

Inside the stationhouse, § 87(2)(b) was placed inside the holding cell. PO Bourne and PO Cevi both told § 87(2)(b) to “shut the fuck up,” while § 87(2)(b) was in the holding cell **(Subsumed in Allegations Q and R)**. PO Bourne then tightened § 87(2)(b) handcuffs and also placed him in leg shackles **(Allegation S)**.

Sgt. Taylor called EMS to the stationhouse, but § 87(2)(b) refused medical attention once EMS arrived. § 87(2)(b) was then released from the stationhouse with one summons for disorderly conduct (BR01) **(Allegation T)**.

§ 87(2)(b) provided the investigation with the video she recorded on § 87(2)(b) cell phone (BR07). § 87(2)(b) also furnished the investigation with video that she recorded (BR 08).



2017-08-18\_16-00-01.mp4



201704208\_20170822\_1147\_DM.mp4

### **Mediation, Civil and Criminal Histories**

- § 87(2)(b) and § 87(2)(b) rejected mediation.
- As of August 14, 2017, no Notice of Claim has been filed (BR12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) and § 87(2)(b) rejected mediation. As of August 14, 2017, no Notice of Claim has been filed (BR12). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### **Civilian and Officer CCRB Histories**

- § 87(2)(b) and § 87(2)(b) have no prior CCRB complaints (BR15).
- Sgt. Taylor has been a member of service for nine years and currently has another CCRB complaint pending investigation. § 87(2)(g)
- PO Bourne has been a member of service for two years and has one allegation stemming from one complaint, which was not substantiated, § 87(2)(g)
- PO Cevi has been a member of service for five years and has six allegations stemming from three separate complaints, one of which was substantiated and the other of which is pending investigation. § 87(2)(g)
  - In case 201304146, a frisk allegation was substantiated. The Board recommended Command Discipline. The NYPD disposition was instructions.

### **Findings and Recommendations**

#### **Explanation of Subject Officer Identification**

§ 87(2)(g)

### **Allegations Not Pleaded**

**Abuse of Authority:** § 87(2)(b) in his phone statement (BR03) said PO Cevi threatened to arrest him if he failed to provide his license and registration. However, during his in-person statement (BR02), § 87(2)(b) did not make this allegation, and when asked directly, he said he did not recall if any of the officers made such a statement to him. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

### **Allegation A - Abuse of Authority: In front of § 87(2)(b) in Brooklyn, Sergeant George Taylor stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.**

It is undisputed that on May 21, 2017, at approximately 8 p.m., officers approached § 87(2)(b) vehicle.

§ 87(2)(b) (BR02) and § 87(2)(b) (BR04) both stated that they were seated in § 87(2)(b) vehicle, which was parked next to a fire hydrant in front of § 87(2)(b)'s home, located at § 87(2)(b) in Brooklyn. § 87(2)(b) drove a white 2013 Mercedes Benz. All windows of the vehicle, with the exception of his front windshield, are darkly tinted. § 87(2)(b) did not know if the tints are legal or not. § 87(2)(b) and § 87(2)(b) had been in the vehicle for approximately one hour before the officers approached.

Sgt. Taylor (BR09), PO Bourne, and PO Cevi (BR11) all said they approached the vehicle for darkly tinted windows and because § 87(2)(b) was stopped at a hydrant. There was no other reason to stop the vehicle.

The three officers all did not recall if the windows were ever tested for tints. Sgt. Taylor and PO Cevi stated that they had initially planned to issue § 87(2)(b) a summons for the tinted windows, but the situation changed rapidly upon establishing contact with § 87(2)(b) and he was ultimately issued a disorderly conduct summons.

No person shall operate on any public highway, road, or street, any motor vehicle which the windshield, side and rear windows are composed of, covered by, or treated with any material which has a light transmittance of less than 70%. NYS Vehicle and Traffic Law, Title 3 Article 9, § 375.12-a (b) (2) (BR16). No person shall stop, stand or park a vehicle within 15 feet of a fire hydrant except when such vehicle is attended by a licensed operator or chauffeur who is seated in the front seat and who can immediately move such vehicle in case of an emergency. NYS Vehicle and Traffic Law, Title 7 Article 32, § 1202-a (3b) (BR17).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **exonerated**.

**Allegation B - Abuse of Authority: In front of § 87(2)(b) in Brooklyn, Sergeant George Taylor searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.**

**Allegation C - Abuse of Authority: In front of § 87(2)(b) in Brooklyn, Police Officer Jonathan Bourne searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.**

§ 87(2)(g)

§ 87(2)(b) (BR02) said that before the officers approached, all windows of his vehicle were fully rolled up and he was engaged in a conversation with § 87(2)(b) while listening to music, which they played at minimum volume. § 87(2)(b) therefore did not see the officers when they approached his vehicle.

§ 87(2)(b) was the first to notice the officers and alerted § 87(2)(b) § 87(2)(b) then rolled down his driver side window and spoke to PO Cevi. Sgt. Taylor and PO Bourne stood by the front and rear passenger doors respectively. PO Cevi asked § 87(2)(b) why he had failed to lower his windows after he had been asked multiple times to do so. § 87(2)(b) told PO Cevi that he had just noticed the officers and that he did not hear their commands.

PO Cevi requested § 87(2)(b) license and registration. § 87(2)(b) asked why. PO Cevi then opened the driver side door and requested § 87(2)(b) license again. At the same time, Sgt. Taylor and PO Bourne also opened the front and rear passenger doors. Sgt. Taylor and PO Bourne then put their heads into the vehicle and briefly looked under the seats and the interior consoles by the door. The officers were inside § 87(2)(b) vehicle for less than a minute and did not retrieve anything from inside the vehicle.

§ 87(2)(b) § 87(2)(g) said Sgt. Taylor and PO Cevi stood on the driver side, while PO Bourne stood on the front passenger side. § 87(2)(b) did not recall when § 87(2)(b) noticed the officers or if she alerted him to their presence, but said § 87(2)(b) rolled down his front windows upon noticing the officers.

PO Cevi requested § 87(2)(b) license and registration approximately two times. Each time, § 87(2)(b) asked PO Cevi why he was stopped, but PO Cevi did not respond. § 87(2)(b) grabbed § 87(2)(b) cell phone which was in the center console and began to record the incident.

PO Cevi requested § 87(2)(b) license and registration a third time. § 87(2)(b) said, "This was not right," and moved so that he could retrieve his license, which was in his right hip pocket. PO Cevi then moved his hand to the side where his gun was located. § 87(2)(b) put her hand over § 87(2)(b) and told him not to move. She then told PO Cevi that § 87(2)(b) was providing his license as the officers had requested.

PO Cevi then opened the driver's door and asked § 87(2)(b) to exit the vehicle. He immediately grabbed § 87(2)(b) left arm and § 87(2)(b) exited the vehicle. PO Cevi then placed § 87(2)(b) in handcuffs.

§ 87(2)(b) exited the vehicle and walked to the rear passenger's side door by the trunk to record the incident. Sgt. Taylor and PO Bourne, who were still standing by the vehicle, at this time opened the front and rear passenger doors and put their heads and upper bodies inside the open car doors. Sgt. Taylor and PO Bourne then looked inside the front and rear passenger side doors, though § 87(2)(b) did not see exactly where they looked. Sgt. Taylor and PO

Bourne were inside § 87(2)(b) vehicle for approximately one minute and did not take anything out of the vehicle.

§ 87(2)(b) was not present at the scene to witness this portion of the encounter. § 87(2)(b) recorded the incident on § 87(2)(b) cell phone (see aforementioned file labeled 2017-08-18\_16-00-1.mp4). § 87(2)(b) begins recording the incident while in § 87(2)(b) vehicle and continues to do so until shortly after § 87(2)(b) is placed in the police vehicle. No search of the vehicle is depicted in the video.

Sgt. Taylor (BR09) said PO Cevi approached the driver side of § 87(2)(b) vehicle, while he and PO Bourne approached the front and rear passenger side respectively. The vehicle's windows were rolled up and tinted so darkly that the officers could not see inside the vehicle. PO Cevi knocked on the driver side window multiple times and also verbally asked that § 87(2)(b) lower his window, but § 87(2)(b) ignored him. Sgt. Taylor did not know if § 87(2)(b) could hear the officer's commands to lower his windows.

Approximately one to two minutes later, § 87(2)(b) rolled down both front windows. PO Cevi requested § 87(2)(b) identification, but § 87(2)(b) once again ignored the request. PO Cevi asked § 87(2)(b) to produce his license approximately five to 10 times. Each time § 87(2)(b) ignored the request and said the officers were bothering him. At some juncture, both the driver and front passenger doors of the vehicle were opened. The driver side door was opened to allow § 87(2)(b) to exit, but Sgt. Taylor could not recall exactly when or how the passenger side door was opened.

Once § 87(2)(b) was out of the vehicle, PO Cevi walked him back to the trunk of the vehicle, where he was then placed in handcuffs. Sgt. Taylor assisted PO Cevi in placing § 87(2)(b) in handcuffs. Sgt. Taylor did not know why PO Cevi placed § 87(2)(b) in handcuffs, though he conjectured it might have been because § 87(2)(b) had failed to produce his license and could not be identified. PO Cevi never informed Sgt. Taylor why § 87(2)(b) was placed in handcuffs. Sgt. Taylor denied searching § 87(2)(b) vehicle at any point during the interaction, and there was no reason the vehicle would have been searched.

PO Bourne (BR10) initially denied any recollection of this incident.

PO Bourne's memo book (BR19) indicates that the officers opened § 87(2)(b) doors after § 87(2)(b) refused several orders to lower his windows and that the doors were opened because the officers could not see inside the vehicle. § 87(2)(b) was then asked approximately three to five times to provide his identification, but he refused and became "erratic" and loud in his voice. § 87(2)(b) yelled that the officers had no right to stop him or open his doors. § 87(2)(b) eventually provided his license after the officers requested that he step out of the vehicle.

After reviewing his memo book, PO Bourne said PO Cevi and Sgt. Taylor might have opened § 87(2)(b) driver and front passenger side doors after § 87(2)(b) had failed to lower his windows. He did not recall if § 87(2)(b) windows were ever rolled down or if other doors were opened. PO Bourne denied entering and searching § 87(2)(b) vehicle or seeing officers do so.

PO Cevi (BR11) corroborated Sgt. Taylor and PO Bourne's testimonies and said § 87(2)(b) vehicle doors were opened primarily for officers' safety and that the vehicle was not at any point searched.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommend that **Allegations B and C** be closed as **unsubstantiated**.

**Allegation D - Discourtesy: In front of § 87(2)(b) in Brooklyn, Police Officer Kristo Cevi spoke discourteously to § 87(2)(b)**

§ 87(2)(b) (BR02) said he became upset after the officers opened his doors and told the officers that they had no right to do so. PO Cevi replied, “Shut the fuck up, you parked illegally at a fire hydrant, we have the right to do whatever we want.” § 87(2)(b) told PO Cevi that they had no right to request his ID or even open his doors. PO Cevi then said to him, “Shut the fuck up and let [the officers] do their jobs.”

§ 87(2)(b) asked PO Cevi why he was being hostile and said he did nothing wrong. PO Cevi replied, “I told you to shut the fuck up. What part of shut the fuck up don’t you understand?” PO Cevi then requested § 87(2)(b) license, which § 87(2)(b) provided. PO Cevi gave the license to Sgt. Taylor. § 87(2)(b) was generally upset that the officers had stopped him, but did not raise his voice and felt he expressed himself calmly.

As § 87(2)(b) was handcuffed, he told PO Cevi there was no need to place him in handcuffs, but PO Cevi replied, “You are still talking? I told you to shut the fuck up, but all you do is talk. What part of shut the fuck up don’t you understand?”

After § 87(2)(b) arrived to the scene, PO Cevi told § 87(2)(b) “Oh, she wants to fucking record us!”

§ 87(2)(b) (BR04) § 87(2)(g) adding that once § 87(2)(b) was removed from the vehicle and tried to inquire why he was being placed in handcuffs, PO Cevi said to him, “Shut the fuck up. You don’t speak, we speak.” § 87(2)(b) did not hear any other profanities used against § 87(2)(b) (In her CCRB phone statement (BR03), § 87(2)(b) said PO Cevi throughout the interaction repeatedly told § 87(2)(b) to “shut the fuck up” every time § 87(2)(b) attempted to speak).

§ 87(2)(b) did not allege that any officers used profanity (BR 06), nor is any profanity captured on the video footage she recorded (see aforementioned labelled 201704208\_20170822\_1147\_DM.mp4).

The video footage recorded by § 87(2)(b) (BR07) captures one instance of profanity directed at § 87(2)(b). At 00:28 seconds, Sgt. Taylor and PO Bourne are depicted standing by the trunk of § 87(2)(b) vehicle with § 87(2)(b) who is handcuffed. § 87(2)(b) says to the officers, “Be honest guys, if I am not getting arrested, why are [you] then putting me in the car?” At 00:30 seconds, Sgt. Taylor twice says to § 87(2)(b) “Did I ask you not to keep quiet?” At 00:31 seconds, PO Cevi says to § 87(2)(b) “Why are you talking?” At the same time, PO Bourne, who, though he is not visible in the frame, appears to be standing behind § 87(2)(b) and tells her to get back in the car. At 00:32 seconds, § 87(2)(b) enters the front passenger seat and quickly moves to the driver seat to continue filming § 87(2)(b) and the officers. At 00:33 seconds, as § 87(2)(b) moves to the driver side, PO Cevi can be heard saying to § 87(2)(b) “Why are you still fucking talking?” At 00:35 seconds, the camera shows PO Cevi standing to the left of § 87(2)(b) and holding § 87(2)(b) left arm. Sgt. Taylor, who is standing in front of § 87(2)(b) then tells him, “No, you don’t talk to us. We don’t listen to you. You keep quiet and listen to us.”

PO Cevi (BR11) confirmed that § 87(2)(b) became upset after the officers opened his doors and said they had no right to do so. PO Cevi tried to explain to § 87(2)(b) why the officers



had opened his door, but was unable to do so because § 87(2)(b) began yelling. PO Cevi did not recall exactly what § 87(2)(b) said or if it included profanities.

PO Cevi requested § 87(2)(b) license approximately three times, but § 87(2)(b) refused, continuing to yell that the officers had had no right to request his license. PO Cevi told § 87(2)(b) to lower his voice and to be cooperative to no effect. § 87(2)(b) appeared to be recording at this time. PO Cevi asked § 87(2)(b) to exit his vehicle. § 87(2)(b) provided his license just prior to exiting his vehicle. PO Cevi did not recall if § 87(2)(b) voluntarily exited his vehicle or was removed from the vehicle.

PO Cevi gave § 87(2)(b) license to Sgt. Taylor, who then returned to the police vehicle to perform record checks on the license. PO Cevi stayed with § 87(2)(b) by his vehicle and tried to explain to him why he was stopped and why they were checking his ID. § 87(2)(b) did not calm down though PO Cevi again told him to be quiet. PO Cevi denied using any profanities in his interaction with § 87(2)(b).

PO Cevi reviewed video footage #2017-08-18\_16-00-1.mp4 (BR07). He initially identified himself by voice as the officer captured using the profanity, though he did not know exactly what was said. Upon reviewing the footage a second time, PO Cevi said it was not his voice, and thought that insofar as Sgt. Taylor was the other officer present, it might have been his voice, though he was not sure.

Patrol Guide Procedure 203-09 (BR20) states that officers must be courteous and respectful in their interactions with the public.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Based on the factors outlined above, it is therefore recommended that that **Allegation D** be closed as **substantiated**.

**Allegation E - Abuse of Authority: In front of § 87(2)(b) in Brooklyn, Police Officer Kristo Cevi threatened to arrest § 87(2)(b)**

**Allegation F - Abuse of Authority: In front of § 87(2)(b) in Brooklyn, Police Officer Jonathan Bourne threatened to arrest § 87(2)(b)**

§ 87(2)(g)

§ 87(2)(b) (BR04) said immediately after § 87(2)(b) was removed from the vehicle, she also exited the vehicle and walked around the trunk to the rear passenger side door to record. § 87(2)(b) stood approximately two to five feet away from the officers and § 87(2)(b) PO

Cevi turned his attention from § 87(2)(b) and told § 87(2)(b) to return to the vehicle or she would be arrested.

PO Bourne also approached § 87(2)(b) by the back passenger's side door and said to her, "Get back in the car or we are going to arrest you." § 87(2)(b) told PO Bourne that she would move back, but that she did not need to go into the vehicle because she was not in the officers' way. PO Bourne again told § 87(2)(b) to return to the vehicle or else she would be arrested. § 87(2)(b) told PO Bourne again that she was not interfering with what the officers were doing, and § 87(2)(b) backed away further from the vehicle and continued to record the incident. PO Bourne then said to her, "I am not going to tell you again. Get back in the car or I will arrest you." § 87(2)(b) complied and returned to the vehicle. PO Bourne did not tell § 87(2)(b) what she could have been arrested for.

§ 87(2)(b) did not witness this part of the interaction.

Video footage § 87(2)(b) recorded (see aforementioned video labeled 2017-08-18\_14-55-25.mp4) captures PO Cevi and PO Bourne's interaction with § 87(2)(b) as § 87(2)(b) was being arrested. The footage does not depict PO Cevi threaten to arrest § 87(2)(b) but does capture PO Bourne threatening to arrest § 87(2)(b).

At 00:11 seconds, § 87(2)(b) has walked around the trunk of the vehicle to stand near the rear driver side door approximately two to five feet away from the officers and § 87(2)(b). At the same time, PO Cevi turns to § 87(2)(b) and appears to say to her, "Stay in the car, he's getting arrested." At 00:12 seconds, § 87(2)(b) replies, "Okay, okay, I can move back," and takes approximately 10 to 11 steps back.

PO Bourne follows § 87(2)(b) and tells her to return to the vehicle. § 87(2)(b) replies, "I can move back," and continues to take a few more steps back. PO Bourne follows § 87(2)(b) and at 00:20 seconds, the two stand approximately 15-20 feet away from Sgt. Taylor, PO Cevi and § 87(2)(b). At 00:21 seconds, PO Bourne asks § 87(2)(b) to return to the vehicle and tells her, "or you are going to go, too." § 87(2)(b) replies, "I can move back...but what did he do?" At 00:22 seconds, PO Bourne tells § 87(2)(b) "You are going to go too. Just be smart and get back in the car, all right?" At 00:25 seconds, § 87(2)(b) walks back to § 87(2)(b) vehicle, while PO Bourne follows her.

PO Cevi (BR11) did not recall interacting with § 87(2)(b) while § 87(2)(b) was being placed in handcuffs. PO Cevi denied threatening to arrest § 87(2)(b) at any point during his interaction with her and said there was nothing for which she could have been arrested.

PO Cevi, after reviewing the video footage, said he asked § 87(2)(b) to return to the vehicle primarily for her own safety because she had come close to the officers as they placed § 87(2)(b) in handcuffs.

PO Bourne (BR10) did not recall any interaction with § 87(2)(b) but said she was generally uncooperative and noncompliant with officers' orders. PO Bourne did not recall what § 87(2)(b) was instructed to do or which officers issued those commands. PO Bourne did not recall if he or any of the other officers instructed § 87(2)(b) to return to § 87(2)(b) vehicle. PO Bourne did not recall if he or any of the other officers made statements about arresting § 87(2)(b) nor did he recall if she could have been arrested.

Upon reviewing the video footage, PO Bourne identified himself as the officer interacting with § 87(2)(b) at 00:20 seconds, but said he did not recall what he meant when he instructed § 87(2)(b) to return to the vehicle or "[she was] going to go, too." PO Bourne said he might have implied § 87(2)(b) would also be arrested or made to leave the scene. § 87(2)(b) could have been arrested for obstruction of governmental administration or disorderly conduct, as



**Allegation G - Force: In front of § 87(2)(b), Sergeant George Taylor used physical force against § 87(2)(b)**  
**Allegation H - Discourtesy: In front of § 87(2)(b), Sergeant George Taylor spoke discourteously to § 87(2)(b)**

§ 87(2)(g)  
§ 87(2)(b) (BR04) said after she sat down in the vehicle, Sgt. Taylor approached and attempted to close the front passenger door. § 87(2)(b)'s left knee and foot were resting on the ledge of the door frame, so that when Sgt. Taylor shut the door, the door struck her. § 87(2)(b) felt that Sgt. Taylor did this deliberately. § 87(2)(b) did not sustain any injuries. Sgt. Taylor then returned to the police vehicle. § 87(2)(b) did not hear any officer curse at § 87(2)(b).

§ 87(2)(b) (BR02), who was already seated in the police vehicle at this time, did not see Sgt. Taylor shut the door on § 87(2)(b)'s leg, but said that Sgt. Taylor at some point approached the police vehicle and said, "Didn't we tell you to shut the fuck up? We talk, you listen. You don't fucking talk to us, so shut the fuck up."

Video footage (see aforementioned video labeled 2017-08-18\_14-55-25.mp4) shows that at 1:03 minutes, Sgt. Taylor says to § 87(2)(b) "Miss, you gonna sit down or you leaving?" PO Cevi looks at § 87(2)(b) and in a loud voice says, "Ma'am, we asked you plenty of times to stay in the car." § 87(2)(b) enters the front passenger seat. Sgt. Taylor approaches the front passenger door and tells § 87(2)(b) that she could either sit fully in the vehicle or leave. § 87(2)(b) tells Sgt. Taylor that she is seated in the vehicle. Sgt. Taylor proceeds to close the door. At 1:16 minutes, the door bounces back open. It is not clear what causes the door to bounce open, or what, if anything, the door made contact with. § 87(2)(b) makes an indistinct sound, but does not complain of pain or state that the door made contact with her foot.

At 1:17 seconds, Sgt. Taylor says, "Miss," at which point § 87(2)(b) moves further from the door into the vehicle. She then says to Sgt. Taylor, "Go ahead and close it." Sgt. Taylor closes the door and walks away.

The video does not depict Sgt. Taylor's alleged profanity.

Sgt. Taylor (BR09) said he closed the front passenger door after § 87(2)(b) and that the door did not make contact with her foot. Sgt. Taylor also denied using any profanities in his interaction with § 87(2)(b).

After reviewing the video footage (BR7), Sgt. Taylor noted that when he attempted to close the front passenger door, the door hit a dangling seat belt buckle and that § 87(2)(b)'s foot was not in the door.

The video footage (BR07) establishes that Sgt. Taylor closed the front passenger door after § 87(2)(b) and that the door initially did not close. The camera does not however capture what object or body part the door made contact with. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation G and H** be closed as **unsubstantiated**.

**Allegation I – Abuse of Authority: In front of § 87(2)(b) in Brooklyn, Police Officer Kristo Cevi interfered with § 87(2)(b)'s use of a recording device.**

**Allegation J - Discourtesy: In front of § 87(2)(b) in Brooklyn, Police Officer Kristo Cevi spoke discourteously to § 87(2)(b)**

§ 87(2)(b) (BR04) said after Sgt. Taylor closed the front passenger door, he returned to the police vehicle. All three officers appeared to look at § 87(2)(b) license. § 87(2)(b) did not actually see how his license was obtained, but assumed officers must have searched him to find it, because she did not see § 87(2)(b) provide his ID before he was handcuffed.

PO Cevi then told § 87(2)(b) that because § 87(2)(b) was recording the incident, the officers had no choice but to take him in, and that any discretion the officers may have used in § 87(2)(b) favor was gone because § 87(2)(b) was still recording. § 87(2)(b) asked § 87(2)(b) to stop recording, and she complied. PO Cevi then asked § 87(2)(b) to exit the vehicle, which she did. As § 87(2)(b) exited the vehicle PO Cevi called her “retarded” because she had her phone with her.

§ 87(2)(g) § 87(2)(b) said that before he was handcuffed, he told PO Cevi that he would record, to which PO Cevi replied, “If you record, then any discretion I have for you will be no more.”

§ 87(2)(b) said at some point after he was placed in the police vehicle, PO Cevi asked § 87(2)(b) to approach the police vehicle. § 87(2)(b) exited the vehicle with her cell phone in her hands. PO Cevi then said, “Didn’t you fucking hear me say leave everything in the car?” § 87(2)(b) left her cell phone and approached the police vehicle. PO Cevi then remarked, “They § 87(2)(b) and § 87(2)(b) are both some fucking retards.”

These allegations are not depicted in the video footage provided by § 87(2)(b) (see aforementioned video labeled 2017-08-18\_14-55-25.mp4). At 1:45 minutes, the video shows PO Cevi and PO Bourne standing by the rear passenger side of the police vehicle. They appear to be speaking with § 87(2)(b) who is seated in the police vehicle, but the footage does not capture what is being said. At 2:34 minutes, § 87(2)(b) tells § 87(2)(b) to stop recording and the video ends at 2:39 minutes.

PO Cevi (BR11) said once § 87(2)(b) was placed in the vehicle, he continued to yell. The officers thus allowed § 87(2)(b) to approach the police vehicle to try to calm him down, but she was unsuccessful in doing. PO Cevi did not recall which officer asked § 87(2)(b) to approach the police vehicle. PO Cevi denied calling § 87(2)(b) “retarded” or using any profanities against her. PO Cevi never told § 87(2)(b) that he would be released if § 87(2)(b) stopped recording and said § 87(2)(b) detainment had nothing to do with the fact that § 87(2)(b) or anyone else was recording.

Sgt. Taylor (BR09) and PO Bourne (BR10) corroborated PO Cevi’s account and said no interference with a recording device occurred and no profanities were used.

§ 87(2)(g)

It is therefore recommended that **Allegations I and J** be closed as **unsubstantiated**.

**Allegation K - Abuse of Authority: Sergeant George Taylor detained § 87(2)(b)**

**Allegation T- Abuse of Authority: Sergeant George Taylor issued a summons to § 87(2)(b)**

It is undisputed that, whether intentionally or not, § 87(2)(b) did not roll down his windows immediately as instructed and did not initially provide his identification. It is also

undisputed that § 87(2)(b) was brought to the 63<sup>rd</sup> Precinct stationhouse and was consequently issued a summons for disorderly conduct.

§ 87(2)(b) (BR02) said he provided his ID after being asked to do so twice before he was removed from the vehicle. § 87(2)(b) was generally upset, but said he was not at first loud or combative with the officers, though he did argue verbally with them.

§ 87(2)(b) § 87(2)(g) said the officers requested § 87(2)(b) identification approximately three times, though she did not see him provide it to them and assumed that might have obtained it subsequent to his removal from the vehicle. She said § 87(2)(b) was not loud and “acted normal” in his interaction with the officers.

§ 87(2)(b) (BR 06) said she was driving home when she saw § 87(2)(b) standing with three officers near a police vehicle. § 87(2)(b) seemed confused in that he was repeatedly asking why he was arrested. Approximately three of § 87(2)(b)'s neighbors were standing in front of their respective homes, some of whom were shouting, “This is bullshit. He did nothing wrong.” § 87(2)(b) could not identify these individuals. § 87(2)(b) approached the officers and began recording. The officers then left the scene with § 87(2)(b).

Video footage § 87(2)(b) recorded (BR07) shows that § 87(2)(b) was immediately handcuffed once he was removed from his vehicle. He asks why he is being placed in handcuffs, but the officers ignore his question and instruct him to keep quiet. § 87(2)(b) continues to speak, though he is not especially loud, nor does he use any profanities. The video does not depict exactly how officers obtained § 87(2)(b) ID, though at 00:48 seconds, § 87(2)(b) says to PO Cevi, “I gave you this already. I gave you my card and everything.” At 00:49 seconds, PO Cevi replies, “After I had asked you four times.” The video at 1:40 seconds shows PO Cevi leaning into the backseat of the police vehicle, where § 87(2)(b) is seated, and appearing to speak with him. At 1:45 minutes, PO Cevi leans out of the vehicle and appears to hold a card, which he hands to Sgt. Taylor.

The video generally does not show any other civilians, apart from § 87(2)(b) at the scene.

Video footage § 87(2)(b) recorded (see above file labeled 201704208\_20170822\_1147\_DM.mp4) does not depict any civilians gathered at the scene beyond § 87(2)(b) and § 87(2)(b). It does not depict any manifest misconduct.

PO Bourne (BR10) said § 87(2)(b) was issued the disorderly conduct summons because of his behavior at the scene of the vehicle stop. PO Bourne said § 87(2)(b) was extremely loud, uncooperative, “belligerent,” and had refused to lower his windows and provide his ID upon multiple requests, though he did provide his ID after his vehicle’s doors were opened.

PO Bourne did not recall if § 87(2)(b) used profanities at the scene of the vehicle stop. Sgt. Taylor instructed him to issue § 87(2)(b) the disorderly conduct summons, but PO Bourne did not recall when or where this instruction was given. There was only one other civilian at the scene, § 87(2)(b) but PO Bourne did not recall whether she approached before or after the instructions to issue the summons was given. § 87(2)(b) stood one car length away from the police vehicle and only appeared to record the officers. § 87(2)(b) was issued disorderly conduct summons for unreasonable noise. PO Bourne did not know why § 87(2)(b) was brought to the stationhouse, although he assumed it might have been because § 87(2)(b) was not cooperative.

On the “factual allegations” section of the summons (BR01), PO Bourne wrote that § 87(2)(b) “was observed being belligerent and loud, refusing to comply with lawful orders to lower his heavily tinted windows and provide ID after three attempts.”

§ 87(2)(g)

§ 87(2)(b) Sgt. Taylor said § 87(2)(b) was highly uncooperative with officers' commands and that he had become loud, erratic and combative. At the prompting of his SBA representative, Sgt. Taylor noted that § 87(2)(b) yelled and cursed repeatedly. The officers tried to defuse the situation by telling § 87(2)(b) repeatedly to stay calm, cooperate, and be quiet, to no avail. § 87(2)(b) also did not comply with PO Cevi's request to provide ID. PO Cevi placed § 87(2)(b) in handcuffs, but Sgt. Taylor did not know why.

Once § 87(2)(b) was placed into handcuffs, PO Cevi obtained his identification and the officers began taking steps to issue him a summons. Sgt. Taylor could not recall how or when PO Cevi obtained § 87(2)(b)'s identification. PO Cevi handed the identification to Sgt. Taylor. Sgt. Taylor went to the police vehicle to retrieve his department cell phone, and then stood outside as he conducted a warrant check of § 87(2)(b) on his department-issued cell phone.

Sgt. Taylor could not estimate how long it took to conduct the warrant check as he was never able to complete it because the situation escalated. Sgt. Taylor felt § 87(2)(b) was creating unreasonable noise because his behavior caused a crowd of approximately 10 people to gather almost immediately after he was handcuffed. The people in the crowd came out of their houses and stood on the sidewalk, while the officers and § 87(2)(b) stood in the middle of the street. The crowd did not engage in the incident and § 87(2)(b) did not try to communicate with them. After about five or ten minutes, Sgt. Taylor felt that the situation had become unsafe, and the officers decided to transport § 87(2)(b) back to the 63<sup>rd</sup> Precinct stationhouse.

After reviewing the video footage (BR07), Sgt. Taylor said that in addition to § 87(2)(b) behavior as depicted in the video, § 87(2)(b) yelled and cursed at the officers. Sgt. Taylor acknowledged that the footage did not depict a crowd, but said they may have been out of the camera's frame.

§ 87(2)(g)

§ 87(2)(b). PO Cevi said § 87(2)(b) provided his license after his doors were opened, and that the decision to issue § 87(2)(b) the disorderly conduct summons was made prior to his removal from his vehicle. PO Cevi did not recall which officer made that determination. § 87(2)(b) was issued the disorderly conduct summons because of his yelling and his uncooperativeness with officers' requests. § 87(2)(b) was the only other civilian PO Cevi saw at the scene, and that she approached the officers just as they were transporting § 87(2)(b) to the stationhouse. PO Cevi did not recall seeing a crowd form as a result of § 87(2)(b) behavior. Given the high crime condition of the general area and § 87(2)(b) erratic behavior, the officers determined it was best to bring § 87(2)(b) to the stationhouse to issue him the summons there. PO Cevi did not know how this determination was made or who made the determination, but noted that before a civilian was brought to the stationhouse a supervisor's permission is required, thus insofar as Sgt. Taylor was the supervisor at the scene he might have made that determination.

PO Cevi after reviewing the video footage recorded by § 87(2)(b) said he might have obtained § 87(2)(b) identification after he was removed from the vehicle and brought to the police vehicle. PO Cevi did not know what § 87(2)(b) meant when he says at 00:48 seconds, "I gave you this already. I gave you my card and everything." PO Cevi noted that generally when officers decide to bring a civilian to the stationhouse for failure to provide identification, the civilians subsequent compliance with the officers' request does not necessarily change the outcome.

PO Cevi in his memo book entry (BR29) noted that § 87(2)(b) provided his ID after the officers had opened his vehicle's door and prior to his removal from his vehicle.

The Command Log (BR 30) indicates that § 87(2)(b) spent approximately 20 minutes at the 63<sup>rd</sup> Precinct stationhouse

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] Between August 18, 2017, and August 22, 2017, three calls were made to the Brooklyn Criminal Court Summons Section, all of which went unanswered. As such, the deposition of § 87(2)(b) summons remains unknown.

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof: engages in fighting or in violent, tumultuous, or threatening behavior; makes unreasonable noise; uses abusive or obscene language or makes an obscene gesture in public place; without lawful authority disturbs any lawful assembly or meeting of persons; obstructs vehicular or pedestrian traffic; congregates with other persons in a public space and refuses to comply a lawful order of the police to disperse; or creates a hazardous or physical offensive condition by any act which serves no legitimate purpose. NYS Penal Law § 240.20 (BR22)

In People v. Baker, 20 N. Y. 3d 354 (2013) (BR26), the court established that the mere use of coarse language towards a police officer is not enough, alone, to constitute the public harm element required for disorderly conduct. An isolated verbal exchange between an individual and a police officer, without any other aggressive action or extenuating circumstance, is not likely to constitute disorderly conduct. Likewise, the mere presence of spectators, without any indication that these spectators are likely to be involved in the dispute, is not enough to constitute disorderly conduct. The court also established in People v. Tichenor, 89 N. Y. 3d 769 (1997), (BR27), that disorderly conduct applies to words and utterances coupled with the intent to cause public disorder, and that private annoyances, however exasperating or reprehensive, are insufficient to constitute disorderly conduct where no breach of the peace has resulted or is imminent, People v. Zongone, 102 Misc.2d 265 (1979) (BR28).

It is not disputed that once the officers approached § 87(2)(b) vehicle that § 87(2)(b) did not initially lower his windows or comply with officers' requests to provide his ID. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)



§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations K and T** be closed as **substantiated**.

**Allegation L - Discourtesy: En route to the 63rd Precinct Stationhouse, Sergeant George Taylor spoke discourteously to § 87(2)(b)**

**Allegation M - Discourtesy: En route to the 63rd Precinct Stationhouse, Police Officer Jonathan Bourne spoke discourteously to § 87(2)(b)**

**Allegation N - Discourtesy: En route to the 63rd Precinct Stationhouse, Police Officer Kristo Cevi spoke discourteously to § 87(2)(b)**

**Allegation O - Force: En route to the 63rd Precinct Stationhouse, Police Officer Kristo Cevi used physical force against § 87(2)(b)**

**Allegation P - Force: At the 63rd Precinct Stationhouse, Police Officer Jonathan Bourne used physical force against § 87(2)(b)**

**Allegation Q - Discourtesy: At the 63rd Precinct Stationhouse, Police Officer Jonathan Bourne spoke discourteously to § 87(2)(b)**

**Allegation R - Discourtesy: At the 63rd Precinct Stationhouse, Police Officer Kristo Cevi spoke discourteously to § 87(2)(b)**

**Allegation S - Force: At the 63rd Precinct Stationhouse, Police Jonathan Bourne tightly handcuffed § 87(2)(b)**

§ 87(2)(b) (BR02) said that the officers drove him to the 63<sup>rd</sup> Precinct stationhouse, he became even more upset that the officers were removing him from the scene. § 87(2)(b) yelled profanities at the officers. § 87(2)(b) did not recall exactly what he said. All three officers repeatedly said, "Shut the fuck up." At one point, PO Cevi, who was seated in the backseat with § 87(2)(b) deliberately shoved § 87(2)(b) against the door when the vehicle made a sharp turn. § 87(2)(b) did not sustain any injuries as a result.

Upon arrival at the 63<sup>rd</sup> Precinct stationhouse, PO Bourne removed § 87(2)(b) from the vehicle and the shoved him front-first against its trunk. § 87(2)(b) did not sustain any injuries from this. PO Bourne again told § 87(2)(b) "Shut the fuck up." The officers brought § 87(2)(b) inside the stationhouse, searched him in front of the desk, and placed him in a single holding cell. § 87(2)(b) handcuffs were never removed.

While in the holding cell, § 87(2)(b) was yelling and narrating the entire incident so everyone at the stationhouse could hear him. PO Bourne and PO Cevi approached the holding cells and both told him, "Shut the fuck up." When § 87(2)(b) continued to yell, the officers then left, but returned a few minutes later and placed § 87(2)(b) in leg shackles. PO Bourne then deliberately tightened § 87(2)(b) handcuffs. § 87(2)(b) told both officers that his handcuffs were too tight, but they ignored him. § 87(2)(b) sustained no injuries from the tightened handcuffs.

Approximately five minutes later, EMS personnel approached § 87(2)(b) in the holding cell. § 87(2)(b) refused medical attention and informed the EMS personnel that he was just upset about how the officers treated him. As § 87(2)(b) and the EMS personnel spoke, PO Bourne came into the holding cell and said § 87(2)(b) was free to go. He then removed § 87(2)(b) cuffs and § 87(2)(b) walked out of the cell along with EMS. PO Bourne then gave § 87(2)(b) a disorderly conduct summons (BR 01).

§ 87(2)(b) (BR04) said that she and § 87(2)(b) went to the stationhouse to inquire after § 87(2)(b). Upon arrival, § 87(2)(b) saw § 87(2)(b) sitting in the holding cell. § 87(2)(b) was asking the officers why he had been arrested but was behaving normally. § 87(2)(b) did not hear profanity and did not see any officer tighten § 87(2)(b) handcuffs. § 87(2)(b) similarly did not witness any misconduct at the stationhouse.

PO Bourne (BR10) confirmed that § 87(2)(b) was yelling profanities at the officers en route to the stationhouse. The officers told § 87(2)(b) on multiple occasions to keep quiet to no effect. PO Bourne did not recall whether or not he or the other officers used profanities against § 87(2)(b). He did not see PO Cevi push or shove § 87(2)(b) while en route to the stationhouse.

Once they arrived, PO Bourne removed § 87(2)(b) from the backseat and brought him inside, where he was placed in the holding cell. PO Bourne denied pushing § 87(2)(b) against the trunk of the police vehicle or using profanities against him at the stationhouse. At some point leg shackles were placed on § 87(2)(b). PO Bourne did not recall which officer placed the leg shackles on § 87(2)(b) or why, but said it is standard protocol for additional restraining devices such as leg shackles to be placed on individuals exhibiting emotionally disturbed behavior. PO Bourne denied tightening § 87(2)(b)'s handcuffs.

EMS arrived and after they had evaluated § 87(2)(b) Sgt. Taylor instructed PO Bourne to release § 87(2)(b) with a disorderly conduct summonses.

PO Cevi (BR11) and Sgt. Taylor (BR09) both generally corroborated PO Bourne's account. Sgt. Taylor said (BR09) he called EMS to the stationhouse because worried that § 87(2)(b) might need medication or other medical attention due to his loud and obnoxious behavior.

PO Cevi (BR11) and Sgt. Taylor (BR09) denied using profanities against § 87(2)(b) en route to the stationhouse and the stationhouse. PO Cevi denied shoving § 87(2)(b) against the police vehicle door at any point during the incident.

§ 87(2)(g)

It is therefore recommended that **Allegations L, M, N, O, P, Q, R, and S** be closed as **unsubstantiated**.

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Squad: 4

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date